

to an absolute disposition, as it enables the mortgagee by foreclosure to get possession of the estate (*a*).

3. **Out of income or corpus.** — If the portions be raisable by and out of the *rents and profits* or by *mortgage*, here the words are ambiguous, and are capable of the construction that the trustees have an option of levying the portions either out of the income or out of the corpus, and so of throwing the onus at their discretion either upon the tenant for life or upon the remainderman (*b*). But the Court will lean strongly against such a construction (*c*). In some cases the meaning is that the annual rents should be primarily charged, and that the deficit only should be raised out of the corpus. Thus where the trustees were to hold an estate during the minority of the devisee, and to raise portions *by and out of the rents and profits or by sale or mortgage*, and on the devisee attaining the age of twenty-one to pay the rents to him after payment of the portions, the Court said that as the devisee on attaining twenty-one was to take such accumulated rents and profits only, as should remain after satisfying the portions, the testator intended that the rents and profits should be first applied, and that the balance only could be raised by sale or mortgage (*d*).

[Where the portions were raisable “by mortgaging or otherwise disposing of the lands, or out of the rents and profits, or by any other ways or means,” and unsuccessful efforts had been made to raise the portions by mortgage of the property, it was held that the trustees were at liberty to apply the rents and profits first in payment of the interest, and secondly in reduction of the capital of the portions (*e*).]

4. **Out of rents.** — A more common case is where the portions are directed to be raised out of the rents and profits simply, and nothing more is said. Here if a definite time be fixed for payment of the portions, the ordinary and *prima facie* meaning of rents and profits is taken to be inconsistent with the direction for payment at a time certain, and

(a) *Bennett v. Wyndham*, 23 Beav. 521.

(b) See *Hall v. Carter*, 2 Atk. 354.

(c) See the cases referred to, *ante*, p. 367.

(d) *Warter v. Hutchinson*, 1 S. & S. 276; and see *Okeden v. Okeden*, 1 Atk. 550.

[(e) *Balfour v. Cooper*, 23 Ch. D. 472.]